

Cal.App.3d 1624, 1627.) “The courts...will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

4. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearing on Lines 8, 9, 10 and 11, which are Counsel Dyas’ Motion to Be Relieved as Counsel. Since these motions are granted, as unopposed, this CMC is continued to July 30, 2026 at 8:30 a.m. in Dept. 16. No appearance is required on February 4, 2026.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

HEARING ON SUMMARY MOTION

FILED BY: TEXACO INC.

TENTATIVE RULING:

This hearing is continued, *sua sponte*, to March 4, 2026 at 9:00 a.m. in Department 16.

6. 9:00 AM CASE NUMBER: C23-02494

CASE NAME: JON JONSSON VS. CARLOS BADELL

HEARING ON MOTION FOR SUMMARY JUDGMENT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by defendant, the City of Richmond (“City”). As discussed below, the motion is **granted**. The City shall circulate and submit, separate from any order on this motion, a proposed form of judgment.

I. Background

On April 19, 2023, plaintiff, who was riding a motorized scooter in the bicycle lane, was struck by a truck driven by defendant Carlos Badell. The truck and scooter had both been traveling the same direction on West Cutting Boulevard, near the intersection with Canal Boulevard. Badell turned right into a parking lot, struck plaintiff, and reported being unable to see plaintiff because the bicycle lane was situation behind a row of cars that were parked along Cutting, parallel to Cutting, between traffic and the bicycle lane. (Separate Statement of Undisputed Material Fact, hereinafter “SSUMF,” Fact Nos. 5, 9, and responses by plaintiff and Badell.) Plaintiff has complete memory loss from a point somewhere after turning onto Cutting Boulevard, before the collision occurred. (SSUMF, Fact No. 6, and responses by plaintiff and Badell.)

On October 3, 2023, plaintiff brought suit against the City of Richmond, as well as the individual defendant, Carlos Badell. (SSUMF, Fact No. 1, and responses by plaintiff and Badell.)

Plaintiff alleges motor vehicle negligence against Badell and a cause of action for dangerous condition of public property against the City. (SSUMF, Fact No. 2, and responses by plaintiff and Badell.) In terms of facts, the complaint states the following:

Plaintiff was lawfully operating his electric bicycle on W. Cutting Blvd. near Canal Blvd. in the bike lane. A vehicle operated by Carlos Badell was been [sic] driven also on W. Cutting Blvd. The vehicle turned right into a parking lot and struck Plaintiff. The vehicle was unable to see Plaintiff as the bike lane was behind a row of cars parked perpendicular [sic] to the bicycle lane. The driver of the vehicle alleges that he could not see Plaintiff due to the way the City of Richmond permitted vehicles to park in such a way that the bike lane was not visible.

The City answered the complaint on November 20, 2023 by way of a general denial that included affirmative defenses. The City's defenses included design immunity (Government Code section 830.6) and immunity under Government Code sections 830.4 and 830.8. (SSUMF, Fact Nos. 3-4, and responses by plaintiff and Badell.)

II. Motion and Oppositions

The City filed this motion in October of 2025. The City labels this motion as one for summary judgment or, in the alternative, summary adjudication. However, each of the issues identified are issues that would dispense with plaintiff's single cause of action against the City. Accordingly, the motion is more appropriately referred to as one for summary judgment with three legal bases: (1) lack of a dangerous condition, (2) design immunity, and (3) other immunities based on failure to provide traffic signals, signs, or markings.

The motion is supported by the SSUMF, a memorandum of points and authorities, a request for judicial notice, an index of evidence and four declarations. One declaration is from Robert Armijo, P.E., the Deputy Director for Public Works and the City Engineer for the City of Richmond, whose provides testimony regarding approval of the plans for the location involved. Christian Engelmann, a registered traffic engineer, provides expert opinion as to the layout and safety of the relevant location. Counsel, Jennifer A. Kung Gellini, provides a declaration authenticating certain litigation materials and outlining an anticipated response to the motion from plaintiff. Norma Contreras, the Police Records and Property Manager at the City of Richmond Police Department, also provides a declaration, purportedly with the traffic collision report and body camera footage from the responding officers, though the latter does not appear to have been successfully submitted as evidence (the Court does not accept video footage via hyperlink).

Defendant Badell filed an opposition to the motion on December 18, 2025. He argues much of the City's evidence is inadmissible and that the inclusion of facts in the separate statement concedes their materiality. In support of his opposition, Badell submits objections to evidence and a response to the City's SSUMF. He also submits an Index of Evidence, which includes his own declaration (Ex. 6), attaching a photograph of a "yield to bicycles" sign placed near the location of the accident, which Badell took after the accident. He also submits excerpts from his own deposition testimony (Ex. 1) and excerpts from the deposition of the responding police officer, Michael Pagaling (Ex. 5), as well as a declaration from counsel (Ex. 4).

The plaintiff filed his opposition on January 20, 2026. The City argues the opposition papers were late and should not be considered because the City had insufficient time to prepare a reply. The Court has nevertheless considered both sets of opposition papers and the City's reply.

Plaintiff's opposition brief does not address the City's dangerous condition contentions. He

instead argues that the asserted immunities do not apply. In support of the opposition, plaintiff provides a declaration by counsel which attaches Google Map screenshots from 2024 and 2025 of “the scene where the incident occurred.” The screenshots include a “yield to bicycles” sign similar to the one in Badell’s photograph.

The City’s reply requests that the Court disregard both oppositions, but also provides substantive argument with respect to the contentions. The City provides a supplemental declaration from Christian Engelmann that opines the bases for plaintiff’s opposition are factually and legally misleading. The City argues that Badell and plaintiff need expert testimony to counter the expert testimony presented in the moving papers.

III. Standard

To be entitled to judgment as a matter of law, a defendant (or cross-defendant) must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant has met its burden of showing that a cause of action has no merit if it demonstrates the absence of any single essential element of plaintiff’s case or a complete defense to plaintiff’s action. (Code of Civ. Proc., § 437c, subd. (o).) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists as to a cause of action -or a defense thereto. (Code of Civil Procedure § 437c, subd. (p)(2).) A plaintiff may not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists. (*Ibid.*)

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) We strictly construe the moving party’s evidence and liberally construe the opposing party’s evidence. (*Gafcon Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1402) without weighing the evidence or conflicting inferences. (*Aguilar, supra*, 25 Cal.4th at 856; Code Civ. Proc., § 437c, subd. (c); *Woodridge Escondido Property Owners Ass’n. v. Nielsen* (2005) 130 Cal.App.4th 559, 567-568.)

IV. Evidentiary Matters

Plaintiff’s Request for Judicial Notice seeks notice of (1) the complaint, (2) the City’s answer, and (3) two images from Google Maps (one as of November 2024 and one as of April 2025). The City also requests notice of the complaint and the City’s answer. The requests are **granted**.

Both plaintiff and Badell have filed objections to the City’s evidence. These are **overruled**.

V. Discussion

A. Issue No. 1 - Dangerous Condition of Public Property (Government Code § 835)

Defendant argues that plaintiff has failed to allege the elements of this cause of action, specifically the existence of a dangerous condition.

A cause of action for dangerous condition of public property must allege: (1) a dangerous condition of public property; (2) a proximate causal connection between the condition and the injury sustained; (3) a reasonably foreseeable risk that the kind of injury that occurred would result from the dangerous condition; and (4) the entity either created the condition, or had actual notice or constructive notice of its existence, and there was sufficient time before the injury for it to have taken

remedial action. (Gov. Code, § 835; *People ex Rel. Dept. of Transportation v. Superior Court (Verdeja)* (1992) 5 Cal.App.4th 1480, 1484-1485.)

Section 835 of the California Government Code "sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property." (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1131-1132.) "Dangerous condition" is statutorily defined as a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used. (Gov. Code § 830 (a).)

The determination of whether a condition is "dangerous" is generally one of fact for the jury (or the court acting as trier of fact). (*Peterson v San Francisco Community College Dist.* (1984) 36 Cal.3d 799, 810; *Constance B. v State* (1986) 178 Cal.App.3d 200.) This question can be determined as a matter of law only if reasonable minds can come to only one conclusion. (*Mittenhuber v City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5.) Along these lines, Government Code section 830.2 states, "[a] condition is not a dangerous condition [...] if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used."

Here, the moving papers do not suffice to meet the City's initial burden as they do not show the City is entitled to judgment as a matter of law. As pointed out in the opposition papers by Badell, Badell claims to have been unable to see plaintiff at all times prior to the collision. A third party's negligence, assuming it exists here, does not negate the existence of a dangerous condition where a third party's negligence is foreseeable in conjunction with some particular feature of the public property. (*Swaner v. City of Santa Monica* (1984) 150 Cal.App.3d 789, 804.)

Accordingly, the Court examines the immunities asserted.

B. Issue No. 2 - Design Immunity (Government Code § 830.6)

Additionally, the City argues that even if the intersection of the boatyard driveway and Cutting Boulevard were a dangerous condition of public property, it is entitled to design immunity.

A public entity may be liable for personal injuries caused by the "dangerous condition" of its property. (Gov. Code, § 835.) An entity may avoid liability, however, through the affirmative defense of the design immunity. (Gov. Code, § 830.6.) "A public entity claiming design immunity must establish three elements: (1) a causal relationship between the plan or design and the accident; (2) discretionary approval of the plan or design prior to construction; and (3) substantial evidence supporting the reasonableness of the plan or design." (*Cornette v. Department of Transportation* (2001) 26 Cal.4th 63, 69, citing *Grenier v. City of Irwindale* (1997) 57 Cal.App.4th 931, 939.)

The first element, a causal relationship between the plan and the accident, requires proof that the alleged design defect was responsible for the accident, as opposed to some other cause. (*Grenier, supra*, 57 Cal.App.4th at 940.) Neither plaintiff nor Badell dispute this issue.

The second element, discretionary approval, "is satisfied by showing the plan or design was either (1) approved in advance of the construction or improvement by the legislative body of the public entity or by some other body or employee exercising discretionary authority to give such approval or (2) prepared in conformity with standards previously so approved. (*Kabat v. Department*

of Transportation (2024) 107 Cal.App.5th 651, 661, citations omitted.) “Discretionary approval need not be established with testimony of the people who approved the project. Testimony about the entity’s discretionary approval custom and practice can be proper even though the witness was not personally involved in the approval process.” (*Dobbs v. City of Los Angeles* (2019) 41 Cal.App.5th 159, 161.”

Here, Robert Armijo, P.E., the Deputy Director for Public Works and the City Engineer for the City of Richmond, provides testimony regarding approval of the plans for the location of the accident here. Armijo’s testimony regarding the context of approval here (mid-construction changes) and general practices of the City for such mid-construction changes, does permit a reasonable inference that the revised plans were approved by the relevant individual.

Despite the lack of any writing specifically approving of the design changes here, the City does not typically require amended plans to be re-signed. Since the changes occurred mid-construction, and the original plans were already approved, the lack of any work stoppage here means that the City Engineer or Patrick Phalen (Engineering Infrastructure Administrator, the individual vested with discretionary approval authority here) reviewed the revised plans and ensured conformity with approved plans. The City’s evidence shows approval must have occurred because construction was not stopped despite “multiple inspections” and the eventual approval by the City Engineer.

Plaintiff and Badell both argue the City fails to establish this element of discretionary approval prior to construction. Specifically, both Badell and plaintiff argue that the approval cannot be “implied.” The Court notes that the point is an inference, not implication, and that the summary judgment statute requires consideration of “all inferences reasonably deducible from the evidence.” (See Code Civ. Proc., § 437c (c) [court considers all evidence in the papers, except that to which objections have been sustained].) Plaintiff and Badell, on the other hand, do not present any evidence that shows, or would lead to a reasonable inference, that the design was *not* approved.

Plaintiff cites *Martinez v. County of Ventura* (2014) 225 Cal.App.4th 364, 374. In that case, the appellate court reversed a trial court’s jury verdict that found the county was entitled to design immunity. There, the evidence was insufficient as a matter of law because of two reasons. First, there was no plan or design at all. (*Id.* at 370.) Second, there was insufficient evidence that the person who approved the construction had the discretionary authority to do so. (*Id.* at 371.)

Both premises for that court’s opinion set this case apart. First, there are drawings and plans here that meet the “low standard” for this element. (*Martinez, supra*, 225 Cal.App.4th at 370, citing *Thomson v. City of Glendale* (1976) 61 Cal.App.3d 378, 384-385 [holding that shop drawing which was designed by an outside fabricator rather than a public employee was sufficient for a design because “there is no requirement that the design be expressed in any particular form”].) Second, no one is disputing the authority of the City Engineer to approve changes to plans. While the final design was not approved until after the incident in this case, that finality was not required for changes made during the course of construction. If it were, design immunity would be nearly impossible to invoke for any liability during the course of long-term construction projects.

Here, there is evidence that an engineering firm worked on the design and requested a changed scope of work on January 26, 2023. (Index of Evidence in Support of Motion, part 7 of 14, Ex. L [firm had “prepared an updated Striping and Improvement plan for Cutting Blvd for review by the CPUC and for the striping contractor to install.”]) The City later authorized payment for that work. (*Ibid.*; see also Ex. M.)

As to the third element of design immunity, “substantial evidence” is all that is required. (*Menges v. Department of Transportation* (2020) 59 Cal.App.5th 13, 20, citing *Grenier, supra*, 57

Cal.App.4th at 940-941.) A case involving design immunity does not function as a typical summary judgment case would because the court does not provide a de novo interpretation of the design. (*Id.* at 21, citing *Ramirez v. City of Redondo Beach* (1987) 192 Cal.App.3d 515, 525–526.) The Court is simply tasked with finding “any substantial evidence,” which may consist of (1) discretionary approval of the design plans themselves, (2) expert opinion of a civil engineer as to the reasonableness of the design, or (3) evidence the design complies with prevailing professional standards. (*Menges, supra*, 59 Cal.App.5th at 21, citations omitted.) Here, all three types of evidence have been presented by the City. (See, e.g., Declaration of Christian Engelmann, ¶135.) This qualifies as substantial evidence.

The City of Richmond has established the applicability of design immunity. Plaintiff and Badell, on the other hand, have not raised material disputes of fact sufficient to deny summary judgment here. While Badell cites *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506 for the rule that inclusion in the separate statement concedes materiality, this does not deprive the Court of its role to determine which ultimate facts are at issue and material to the outcome. The “disputes” raised, in light of the Court’s above rulings on the objections, are either immaterial or not true disputes.

C. Issue No. 3 - Immunity for Failure to Provide Traffic Signs, Signals, or Markings (Government Code §§ 830.4 and 830.8)

The third basis on which the motion is made, immunity pursuant to Government Code sections 830.4 and 830.8, also applies. Government Code, section 830.4 states that a condition is not a dangerous condition “merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs [...]” Government Code, § 830.8 states the immunity: “[n]either a public entity nor a public employee is liable under this chapter for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code.” While the section excepts certain liabilities that might arise, the ones identified in Government Code section 830.4 are not subject to the exception. The only sign plaintiff or Badell contend should have been placed is a yield to bicycles sign. The issue is insufficient to create a dangerous condition, as set forth in Government Code, § 830.4. Immunity would therefore apply. Further, to the extent any exception to Government Code, § 830.8 could be relevant, any reasonable juror would conclude that, so long as a parked row of cars was blocking view of another lane of traffic (whether a bike lane or car lane), the need to observe any parallel traffic would be reasonably apparent to a person exercising due care while approaching a driveway.

The motion for summary judgment must be granted.

7. 9:00 AM CASE NUMBER: C23-03148

CASE NAME: ERICA LEONARDO VS. DIANA ORMAN

HEARING ON SUMMARY MOTION

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Cross-Defendant Bank of America’s motion for summary judgment is denied. The motion for summary adjudication is granted as to attorney fees and otherwise denied.

Cross-Complainant Diana Orman is the personal representative of Philip Blair’s estate and Blair’s daughter. Erica Leonardo sued Orman alleging that she had an agreement with Blair (her